



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Planner II
Subject: PLN-22-00010 / Cheyenne Area Future Land Use & Transportation Map
Amendment for High Plains Business Park
Date: October 10, 2022

Background:

The item for consideration is a Cheyenne Area Future Land Use & Transportation Map Amendment. This is approved by **Resolution**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 10/10/2022
- Public Services Committee 10/18/2022
- Final Consideration 10/24/2022

Related Items:

- UDC-22-00310: Annexation
- UDC-22-00313: Zoning Map Amendment
- UDC-22-00312: Final Plat

Planning Commission Recommendation:

The Planning Commission heard this item at their October 3, 2022 meeting and unanimously recommended the Governing Body approve this application.

Board of County Commissioners Recommendation:

The item will go before the Board of County Commissioners on October 18. Staff will provide a memo regarding the Board of County Commissioners action on the item (if any) prior to final consideration of this item on 10/24/2022.

The Planning Commission Staff report is attached and has not been changed (less the draft Planning Commission Resolution, instead, the signed Planning Commission Resolution adopting this action is attached).

Attachments:

1. Resolution
2. Planning Commission Staff Report (including the signed Planning Commission Resolution)

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION CERTIFYING PLANNING COMMISSION ACTION AMENDING THE CHEYENNE AREA FUTURE LAND USE & TRANSPORTATION MAP OF *CONNECT 2045: UPDATE TO THE MASTER TRANSPORTATION AND FUTURE LAND USE PLAN OF PLANCHEYENNE*, AMENDING THE LAND USE CATEGORY AND TRANSPORTATION NETWORK FOR PROPERTY GENERALLY LOCATED BETWEEN I-25 AND SOUTH GREELEY HIGHWAY, SOUTH OF COLLEGE DRIVE.”

WHEREAS, *PlanCheyenne*, as amended by *Connect 2045: Update to the Master Transportation and Future Land Use Plan of PlanCheyenne* adopted by the Governing Body of the City of Cheyenne by Resolution No. 6106, is the Master Plan for the City of Cheyenne and the Comprehensive Plan for portions of Laramie County adopted by both the Governing Body of the City of Cheyenne and Laramie County Board of County Commissioners; and

WHEREAS, the intent of the Cheyenne Area Future Land Use & Transportation Map is not to predetermine specific land uses for individual parcels or specific locations for uses or facilities, but to provide a general framework for neighborhoods and activity centers organized around roadway networks and major parks and open space; and

WHEREAS, Brad Emmons of AVI, PC, resident of Cheyenne, has initiated an amendment to the Cheyenne Area Future Land Use & Transportation Map to amend the land use category from Urban Residential and Mixed Use Residential to Mixed Use Employment for previously unplatted land to be known as High Plains Business Park between I-25 and Division Avenue north of High Plains Road in Cheyenne and Laramie County, Wyoming as shown in Exhibit A which is attached hereto and incorporated herein; and

WHEREAS, Brad Emmons of AVI, PC, resident of Cheyenne, has initiated an amendment to the Cheyenne Area Future Land Use & Transportation Map to amend the transportation network of the land bounded by College Drive on the north, Division Avenue on the east, Terry Ranch Road on the south, and I-25 on the west as shown in Exhibit B which is attached hereto and incorporated herein; and

WHEREAS, plan amendments approved by the Governing Body pursuant to the criteria set forth on Page 18 of *PlanCheyenne*, as amended; and

WHEREAS, the Laramie County Board of County Commissioners reviewed the proposed future land use map amendment and were given the opportunity to make comments; and

WHEREAS, a public hearing to receive public input and comments on the proposed Cheyenne Area Future Land Use & Transportation Map amendment for the above described property was held before the City of Cheyenne Planning Commission on October 3, 2022 and the Commission subsequently adopted a resolution approving the proposed amendments; and

WHEREAS, Plan Amendment processes and procedures required by *PlanCheyenne*, as amended, have been followed with regard to the request by Brad Emmons to amend the Cheyenne Area Future Land Use & Transportation Map for the above-described property.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

THAT, the City of Cheyenne Governing Body hereby certifies Planning Commission action amending the Cheyenne Area Future Land Use & Transportation Map of *Connect 2045: Update to the Master Transportation and Future Land Use Plan of PlanCheyenne* changing the land use category from Urban Residential and Mixed Use Residential to Mixed Use Employment as shown in Exhibit A, and amending the transportation network as shown in Exhibit B in accordance with the procedures outlined in *PlanCheyenne* and Wyoming Statutes § 15-1-503 and § 15-1-505; and

THAT, staff is authorized to amend affected maps of *Connect 2045: Update to the Master Transportation and Future Land Use Plan of PlanCheyenne* to reflect the aforementioned changes; and

THAT, this resolution shall become effective after its passage, approval and publication.

PRESENTED, READ AND ADOPTED THIS ____ DAY OF _____, 2022.

PATRICK COLLINS, MAYOR

(S E A L)

ATTEST:

KRISTINA F. JONES, CITY CLERK



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

OCTOBER 3, 2022

STAFF REPORT

FILE:

PLN-22-00010: Cheyenne Area Future Land Use & Transportation Map Amendment for High Plains Business Park

REQUEST:

A request to amend the Cheyenne Area Future Land Use & Transportation Map. Changing future land uses from Mixed-use Residential and Urban Residential to Mixed-Use Employment. Changing the future transportation network to allow the large lot proposed in the center of the development

LOCATION:

Between I-25 and South Greeley Highway, south of College Drive

OWNERS:

Michael James Sara; David and Elizabeth Schroth; Sara, William A and Ginger L Joint Revocable Trust; Goat Systems LLC; Swan Ranch LLC.

ZONING:

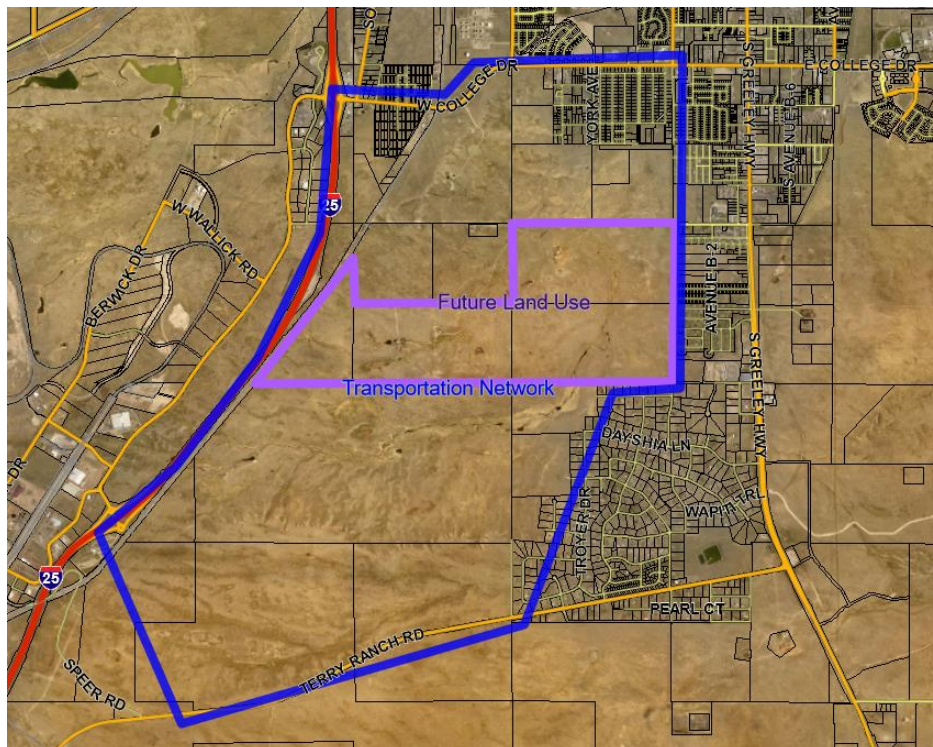
County A-2 Agricultural

PURPOSE:

To facilitate the development of High Plains Business Park.

PREPARED BY:

Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **adopt** the Planning Commission Resolution amending the Cheyenne Area Future Land Use & Transportation Map amendment for land generally located between I-25 and South Greeley Highway, south of College Drive.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- PlanCheyenne (2014 Community Plan)
- Connect 2045

BACKGROUND:

The request is to amend the Cheyenne Area Future Land Use & Transportation Map for land generally located between I-25 and South Greeley Highway, south of College Drive to accommodate the development of the High Plains Business Park. The area subject to the future land use amendment is roughly 1.5 square miles, but the changes to the transportation network influence nearly 9 square miles of the southwest section of the community. The land is presently largely undeveloped.

The concurrent applications for an annexation, zoning map amendment, preliminary plat, and final plat have been submitted. The zoning map amendment will accompany the future land use amendment at Planning Commission and City Council. If these applications are approved, the applicant will be required to submit a site plan application for future development.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site (Land Use Amendment Area)	Mixed-use Residential and Urban Residential	County CB, County A-2	Vacant (likely agriculture)
North	Mixed-use Employment, Community Business, Mixed-use Residential, and Urban Residential	LI Light Industrial, CB Community Business, County CB, County PUD, County A-2	Vacant (likely agriculture), Industrial, Commercial
South	Mixed-use Employment, Mixed-use Residential, Urban Residential, and Urban Transition Residential	County A-2, County AR	Vacant (likely agriculture), Rural Residential
East	Mixed-use Residential	County A-2, County MR, County CB	Mobile Home Park
West	Mixed-use Employment	LI, County CB	Vacant (possible agriculture), Industrial

The property subject to the land use map amendment is shown as Mixed-use Residential and Urban Residential in the current Cheyenne Area Future Land Use & Transportation Map. These future land use categories anticipate mostly residential uses with a mix of small-scale, neighborhood-serving commercial uses.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to approve an amendment to the Future Land Use Map of the Comprehensive Plan, the Commission must make the following considerations outlined in the 2014 Community Plan (page 18). A detailed analysis is below:

1) BENEFICIAL OR ADDRESSES ISSUES - The proposed amendment is beneficial to the community or addresses issues not foreseen during the planning process.

The proposed future land use map amendment at this location is beneficial to the community and addresses an issue not foreseen during the planning process for the 2014 PlanCheyenne amendment or the Connect 2045 amendment. When these were adopted, it was not known that the subject property had the potential for limited industrial development. However, the market and property owners noted the prime location of the subject property on the periphery of the community; the large amount of space available; and proximity to I-25, the railroad, and South Greeley Highway as a logical location for more intensive development. The development at this location also warrants an amendment of the street network shown on the map. This amendment will facilitate development in South Cheyenne and further several economic development goals contained within PlanCheyenne.

The proposed Future Land Use amendment **complies** with review criterion 1.

2) COMPATIBLY - The proposed amendment is compatible with the surrounding area, and the goals and policies of the Plan.

The subject property is located in an area that is largely undeveloped, with the exception of the residential development located to the east and southeast. Due to its isolated nature, the subject property is suitable for a mix of limited industrial and commercial development, noting the impacts of the limited industrial development will be minimal to the largely vacant surrounding properties. The proposed street network in Connect 2045 will need to be modified to go around this development, but all edges of this development can be serviced by the regional network. The proposed amendment will further various economic development objectives contained within PlanCheyenne, specifically the policies contained in Principle 3.5: Provide Opportunities for a Range of Industrial Employment Uses.

The proposed Future Land Use amendment **complies** with review criteria 2.

3) IMPACT MITIGATION - The proposed amendment will address and mitigate impacts on transportation, services, and facilities.

Transportation:

The transportation network in this area of the City is largely undeveloped. As High Plains Business Park develops, the property owners and developers will be required to dedicate adequate right-of-way to service the business park and mitigate the development's impact on existing rights-of-way. Additional rights-of-way are proposed to be constructed with this development.

Services:

The proposed change will require coordination with the Board of Public Utilities and Fire Department through the platting and site plan process. The proposed development will be required to meet the standards of these reviewing departments and agencies.

Facilities:

The proposed change may require additional facilities as determined by the platting or site plan processes. These changes will be addressed at these phases of the development process.

The proposed Future Land Use amendment **complies** with review criteria 3.

- 4) SERVICE PROVISION - The proposed amendment will have minimal effect on service provision, including adequacy or availability of urban facilities and services, and is compatible with existing and planned service provision**

The land is currently being annexed by the City of Cheyenne. It is within the Urban Service Boundary and the development will be required to meet the Board of Public Utilities service requirements and standards.

The proposed Future Land Use amendment **complies** with review criteria 4.

- 5) ANNEXATION - The proposed amendment does not jeopardize the City's ability to annex the property.**

The property is currently proposed for annexation.

The proposed Future Land Use amendment **complies** with review criteria 5.

- 6) URBAN SERVICES AREA - The proposed amendment is consistent with the logical expansion of the Urban Services Area.**

The proposed amendment is within the Urban Services Boundary. The expansion of services at this location is logical as it is adjacent to current services and assists in the continued development in South Cheyenne.

The proposed Future Land Use amendment **complies** with review criteria 6.

- 7) STRICT ADHERENCE - Strict adherence to the Plan would result in a situation neither intended nor in keeping with other key elements and policies of the Plan.**

This area of the City was proposed as largely developing with residential uses. However, there were no active proposals, and the designation was a 'best guess' as to what would be appropriate in this location. PlanCheyenne encourages flexibility to respond to market demands and views the future land use map as a guide. Large acreage parcels on the edge of the community with access to regional transportation routes are considered optimal for intensive employment uses. Strict adherence to the Plan may result in unintended consequences. The proposed Business Park at this location provides an opportunity for furthering Cheyenne's position in the regional economy. The business park will result in more employment and tax revenue generated by the City. Strict adherence to the currently adopted Cheyenne Area Future

Land Use & Transportation Map may prohibit the business park from coming to fruition and result in a missed opportunity for further economic development and diversification.

The proposed Future Land Use amendment **complies** with review criteria 7.

8) PUBLIC WELFARE AND CONSISTENCY – The proposed plan amendment will promote the public welfare and will be consistent with the goals and policies of PlanCheyenne and the elements thereof.

Staff is satisfied that the proposed application will not have any adverse effects on public welfare. Furthermore, the application accomplishes the following policies contained within PlanCheyenne:

- **Policy 1.1.B. Flexibility to Market Demands:** This goal notes that the future land use plan does not predetermine all uses on individual parcels and is meant to provide flexibility. The future land use map amendment and Urban Services Boundary amendment will serve as an economic development opportunity that was not seen when the future land use map was adopted.

The proposed Future Land Use amendment **complies** with review criteria 8.

CONFORMANCE WITH APPLICABLE PLANS:

No other plans are applicable for this area.

CONCLUSION:

Staff recommends approving this Cheyenne Area Future Land Use & Transportation Map amendment due to the proposal's positive impact on economic development and diversification in Cheyenne. The proposed amendment will support future annexations in the area, possibly creating more jobs, housing, and tax revenue for the City. The proposed development will be required to work with the City to ensure adequate infrastructure and facilities serve the business park. Staff is satisfied this amendment meets the review criteria set forth in PlanCheyenne and is supportive of this request.

ALTERNATIVES:

1. Approve the Resolution amending the Cheyenne Area Future Land Use & Transportation Map (**Staff Recommendation**).
2. Approve the Resolution amending the Cheyenne Area Future Land Use & Transportation Map subject to modifications.
3. Deny the Resolution to not amend the Cheyenne Area Future Land Use & Transportation Map. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Resolution until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

In the event that the Commission acts contrary to staff's recommendation, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the Resolution amending the Cheyenne Area Future Land Use & Transportation Map for Resolution amending the Cheyenne Area Future Land Use & Transportation Map amendment for land generally located between I-25 and South Greeley Highway, south of College Drive.

ATTACHMENTS:

1. Planning Commission Resolution
2. Current Cheyenne Area Future Land Use & Transportation Map
3. Future Land Use Map Amendment
4. Proposed Transportation Network

PLANNING COMMISSION RESOLUTION NO. PC-2022-01

ENTITLED: “A RESOLUTION ADOPTING AN AMENDMENT TO THE CHEYENNE AREA FUTURE LAND USE & TRANSPORTATION MAP OF CONNECT 2045: UPDATE TO THE MASTER TRANSPORTATION AND FUTURE LAND USE PLAN OF PLANCHEYENNE, AMENDING THE LAND USE CATEGORY AND TRANSPORTATION NETWORK FOR PROPERTY GENERALLY LOCATED BETWEEN I-25 AND SOUTH GREELEY HIGHWAY, SOUTH OF COLLEGE DRIVE.”

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WHEREAS, comprehensive plan amendments are adopted by the Planning Commission according to the provisions of Wyoming State Statute §15-1-503 and §15-1-505.

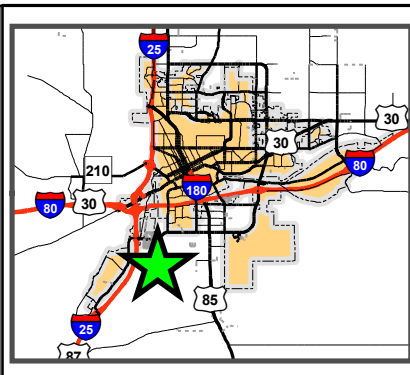
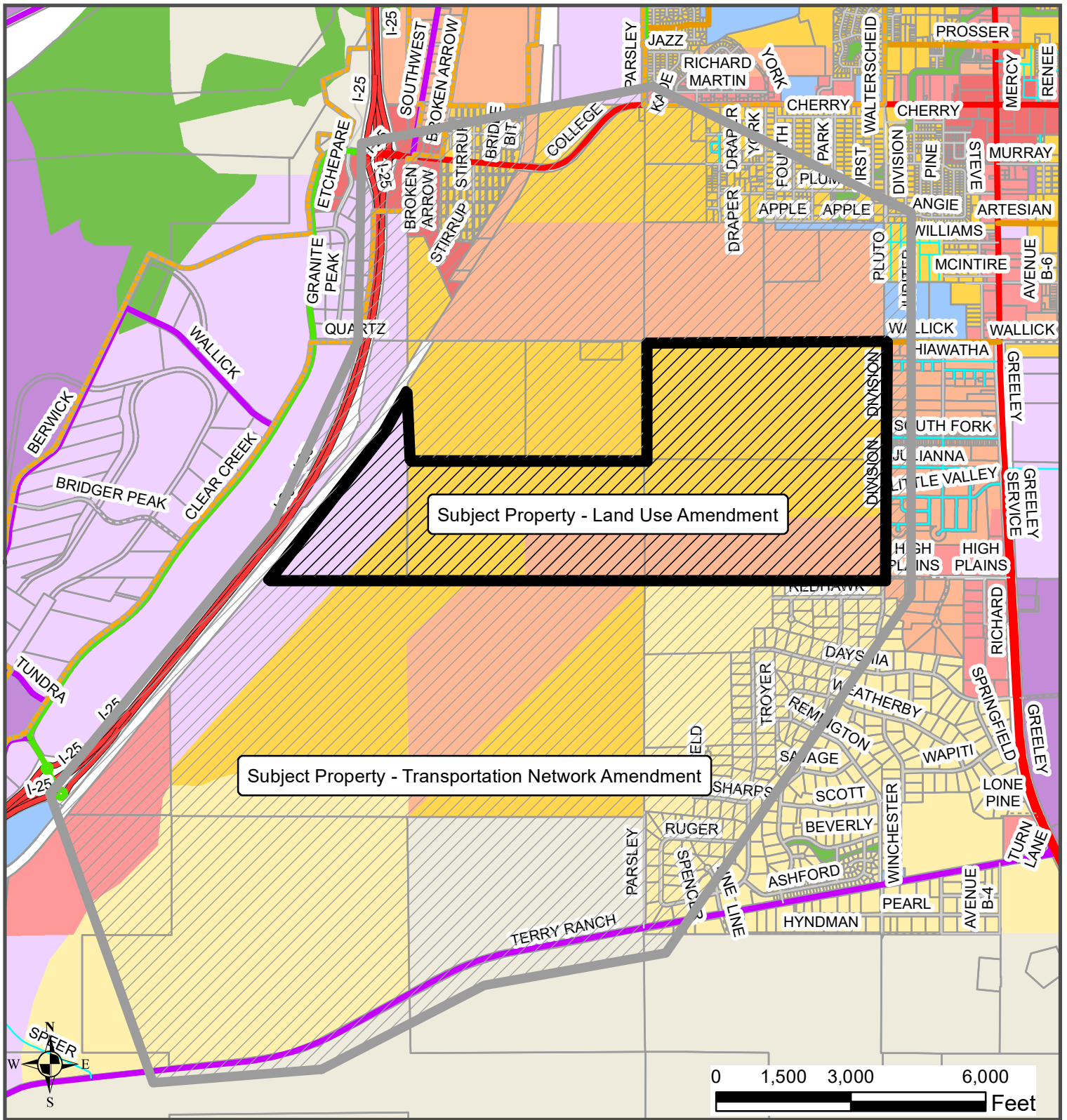
NOW, THEREFORE, BE IT RESOLVED BY THE PLANNING COMMISSION OF THE CITY OF CHEYENNE, WYOMING, THAT the City of Cheyenne Planning Commission hereby adopts the amendment to the Cheyenne Area Future Land Use & Transportation Map of *Connect 2045: Update to the Master Transportation and Future Land Use Plan of PlanCheyenne*.

PRESENTED, READ, AND ADOPTED THIS 3 DAY OF October, 2022.


Philip Griggs
Planning Commission Chair

ATTEST:


Robert Chamberlin
Planning Commission Secretary

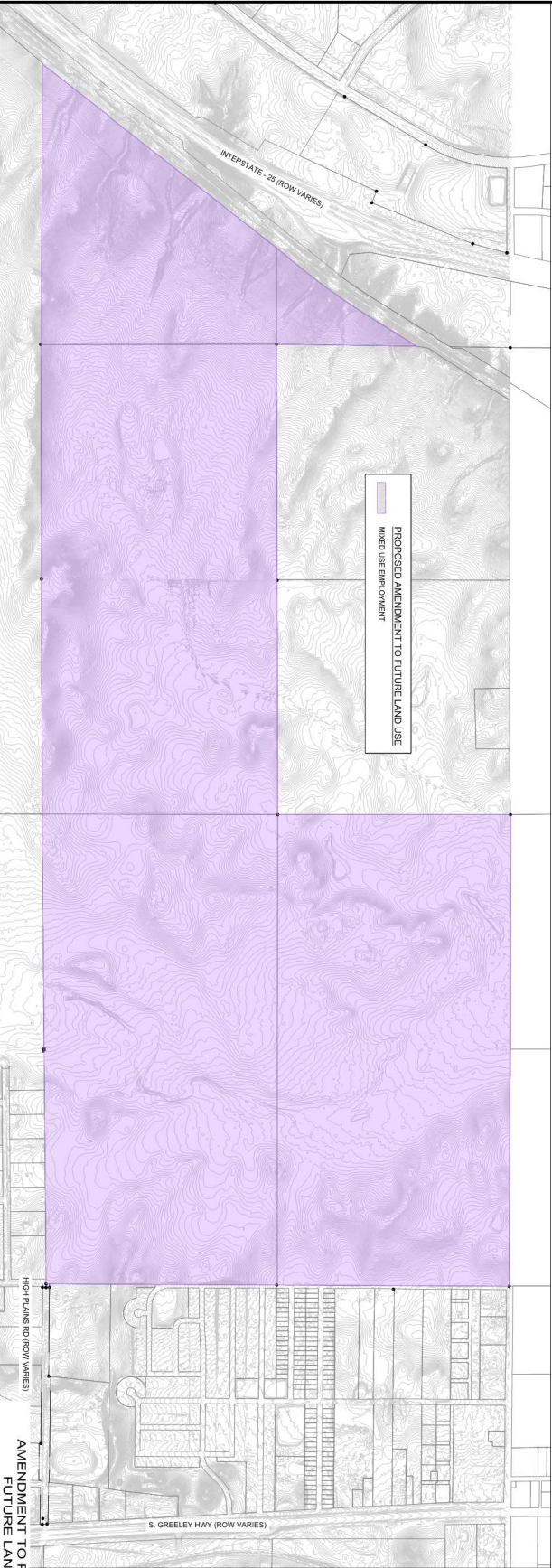
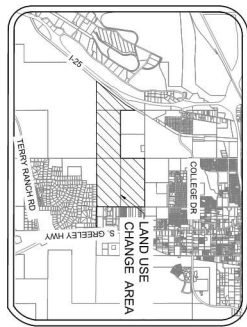
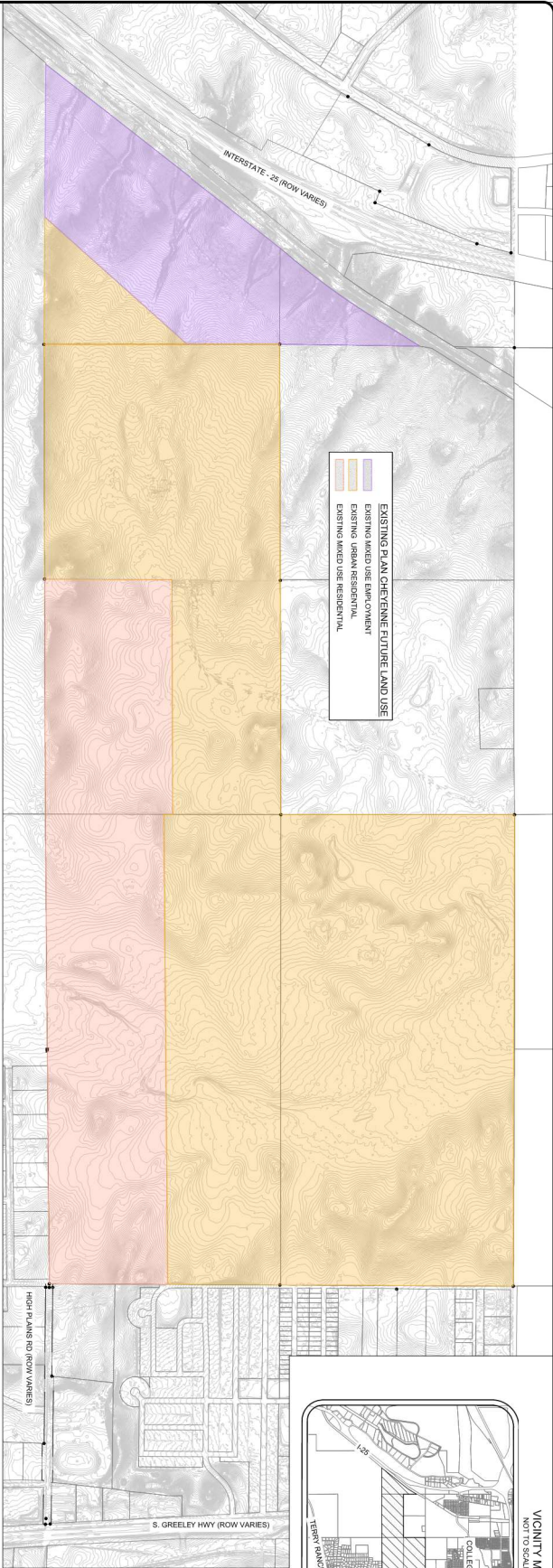


Attachment 2: Land Use Map PLN-22-00010

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

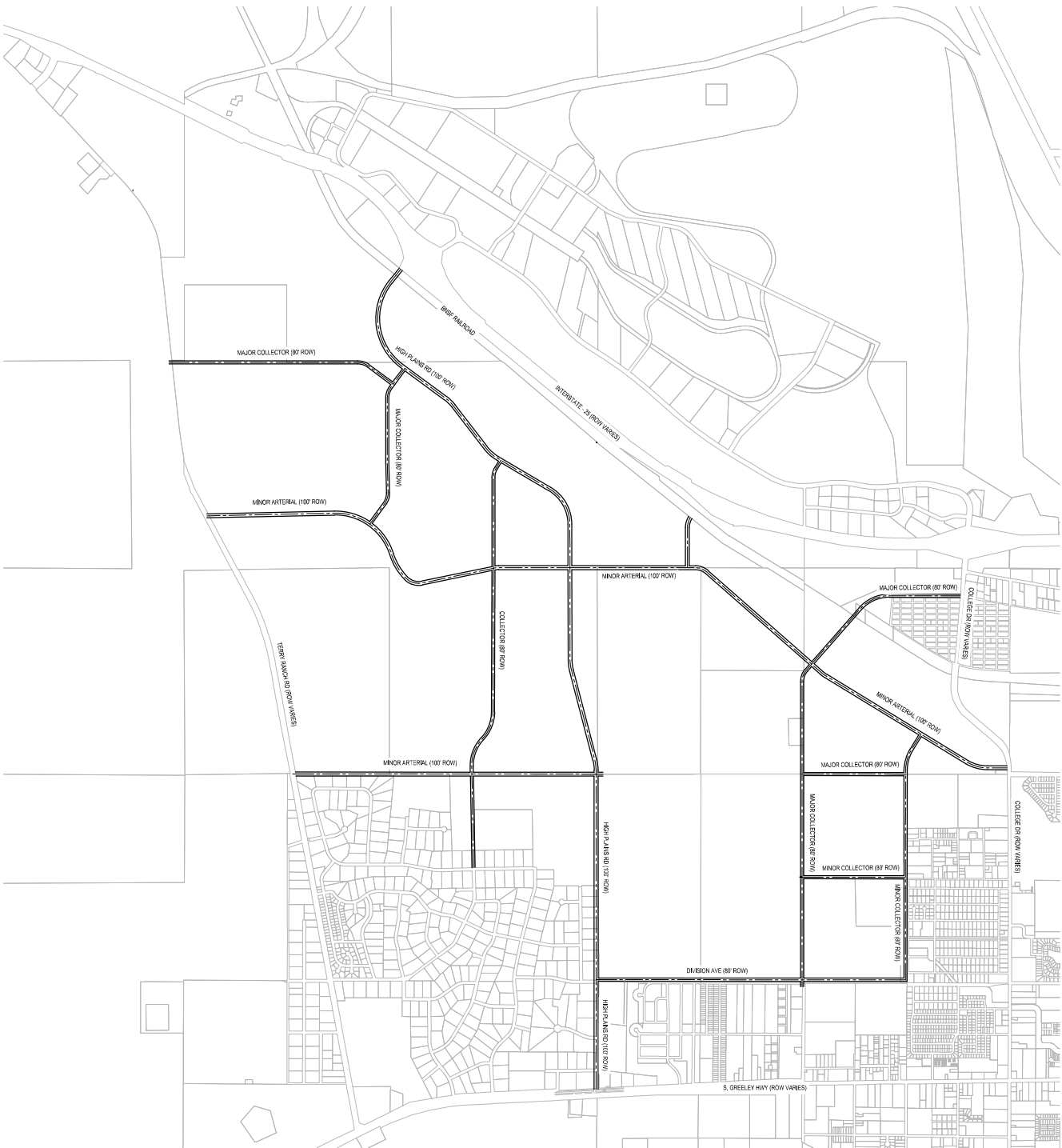
Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



AMENDMENT TO PLAN CHEYENNE
FUTURE LAND USE MAP
FOR
HIGH PLAINS BUSINESS PARK
BEING SITUATED IN A PORTION OF SECTIONS 14, 23 AND 24,
TOWNSHIP 13 NORTH, RANGE 66 WEST OF
THE 6TH P.M. COUNTY OF LARAMIE, STATE OF WYOMING
PREPARED SEPTEMBER 2022

DRAWING NO. 1 OF 1 426 426	PROJECT: HIGH PLAINS BUSINESS PARK DRAWING TITLE: FUTURE LAND USE MAP	PREPARED FOR: CHEYENNE LEADS PO BOX 1045 CHEYENNE, WY 82003	NO. REVISION DATE
		PROJECT: HIGH PLAINS BUSINESS PARK DRAWING TITLE: FUTURE LAND USE MAP	NO. REVISION DATE



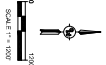
Legend

ROADWAY CENTERLINE

ROADWAY RIGHT-OF-WAY

PARCEL BOUNDARY

TRANSPORTATION NETWORK PLAN
FOR
HIGH PLAINS BUSINESS PARK
A PORTION OF T13N, R67W & T13N, R68W
LOCATED IN
OF THE 6TH PRINCIPAL MERIDIAN,
LARAMIE COUNTY, WYOMING
PREPARED AUGUST 2022



DRAWING NO. 1 OF 1		DATE: Aug 26, 2022		DESIGNED BY: NS		CHECKED BY: NS		DWG NO.: 426		PROJECT: HIGH PLAINS BUSINESS PARK		DRAWING TITLE: TRANSPORTATION NETWORK PLAN		PREPARED FOR: CHEYENNE LEADS PO BOX 1045 CHEYENNE, WY 82003		<table><thead><tr><th>NO.</th><th>REVISION</th><th>DATE</th></tr></thead><tbody><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> </td></tr><tr><td> </td><td> </td><td> 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